



OAKRIDGE INTERNATIONAL SCHOOL
HYDERABAD, BACHUPALLY
A NORD ANGLIA EDUCATION SCHOOL



BACKGROUND GUIDE



ICJ

Agenda: Kohler and Paris (France v. Islamic Republic of Iran)



Letter from the Executive Board

Dear Advocates,

Welcome to the International Court of Justice at Oakridge Bachupally MUN 2026. Let us set expectations early. This committee has no caucusing, no bloc politics, no resolution at the end of it. What it has is a bench, a closed record, two teams of counsel, and a dispute between sovereign states that will be won by whoever argues it better. We have sat through enough committees where volume passed for advocacy. Not in this one. The advocate who cites a paragraph number will beat the advocate who raises a voice, every single time, and we intend to make sure of it.

The dispute you are about to argue is drawn from a real case. In May 2025 France took Iran to the actual Court over the detention of two of its nationals, and this guide is built on that application, the reporting around it, and the treaty framework it invokes. We have taken deliberate liberties with the case, and rather than let you discover them mid-committee, we explain them openly in the note that follows and again at the head of the statement of facts. A courtroom simulation should never hide the seams of its own construction.

A few practical things. The facts are numbered, and you will plead from them by number. Each ground divides into two parts, and every one of the ten counsel on each team argues exactly one part, so there is nowhere to hide and no reason to want to. And read past this guide. The judgments cited here sit free on the Court's website, and the difference between a decent advocate and a memorable one, in our experience, is usually whether they read LaGrand or read a summary of LaGrand.

Prepare your part properly, learn your opponent's best argument until you could make it yourself, and treat our questions as the main event rather than an interruption. We are looking forward to this.

With regards,

The Executive Board

Afnaan Khan



President of the Court

Aanya Jain

Vice-President of the Court

A Note on This Simulation, Read This First

This committee is strongly based on a real case, and it deviates from it knowingly. On 16 May 2025 the French Republic filed an application instituting proceedings against the Islamic Republic of Iran before the International Court of Justice concerning the detention of two French nationals, Cécile Kohler and Jacques Paris.

Three deviations define this simulation, and advocates should be able to name all three.

- First, the freeze. The record of this committee closes on 16 May 2025, the date of filing. Nothing that occurred in the real matter after that date exists here, may be researched into argument, or may be put to the bench. Advocates who know the later course of the real case are required to leave that knowledge outside the room.
- Second, the widened jurisdiction. The real application rests on a single treaty basis, the Vienna Convention on Consular Relations of 1963 and its Optional Protocol, because that is the only instrument through which France could seize the Court unilaterally. This simulation assumes the parties subsequently concluded a special agreement submitting a wider set of questions. That instrument is fictional and appears in Section III. The grounds it unlocks, arbitrary detention and hostage taking, treatment and fair trial, and the diplomatic protection questions, were all part of France's public presentation of the dispute but could not have been litigated on the real jurisdictional basis.
- Third, the facts. The statement of facts in Section II is inspired by and closely modelled on the real case, but it is not identical to it. It has been adapted and supplemented so that the additional grounds can be argued on a workable record, and it is divided into agreed and contested facts for that purpose. Where the statement stipulates something for the simulation, it says so. The statement of facts in this



guide, and only that statement, is the factual record of this committee. Everything else, the parties, the treaty texts, and the case law, is real and is to be argued as such. We would rather tell you all of this ourselves than have a well-read advocate discover it mid-session and wonder what else was quietly changed. Nothing else was.

I. The International Court of Justice

The International Court of Justice is the principal judicial organ of the United Nations, established by the Charter and governed by its Statute, which is annexed to the Charter and binds all members of the Organization. The Court sits at the Peace Palace in The Hague and consists of fifteen judges elected by the General Assembly and the Security Council for nine-year terms, no two of whom may be nationals of the same state. A party to a case that has no judge of its nationality on the bench may appoint a judge ad hoc for that case. The Court decides contentious cases between states and gives advisory opinions to authorised organs. This committee simulates a contentious case.

Judgments in contentious cases are final, without appeal, and binding on the parties in respect of the particular case. Three structural principles matter constantly in this room.

- Consent. The Court has no jurisdiction over a state that has not accepted it, whether through a compromissory clause in a treaty, a declaration under the optional clause of Article 36(2), a special agreement, or conduct amounting to forum prorogatum. Jurisdiction is never presumed.
- A dispute. The Court settles disputes of a legal character, defined since *Mavrommatis* as a disagreement on a point of law or fact, a conflict of legal views or of interests between two persons.
- The applicable law. Article 38 of the Statute directs the Court to international conventions, international custom as evidence of a general practice accepted as law, general principles of law, and, as subsidiary means, judicial decisions and the teachings of publicists. Every submission in this room should locate itself inside that hierarchy. The same Article permits the Court to decide a case *ex aequo et bono*, by what is fair and good rather than by strict law, but only if the parties



agree, and they almost never have. Ours have not. Argue law, not equity.

There is no prosecutor in this Court and no accused. The parties are the Applicant, which brings the claim, and the Respondent, which answers it. France is the Applicant. Iran is the Respondent. Individuals cannot be parties before the Court, which is why this case belongs to France and not to the two detainees, a point with real doctrinal consequences in Ground One.

II. Statement of Facts

This statement is inspired by and closely modelled on the facts of the real case as they stood at the freeze date, drawn from the application as publicly reported, the statements of the French Government, and contemporaneous reporting. It differs from the real record in limited respects. Because this simulation argues more grounds than the real case could carry, certain facts have been supplemented or stipulated so that each ground has a record to be argued on, and the contested facts have been framed as contested so that both teams have something real to fight over. Where the parties are recorded as agreeing a fact, it may not be disputed in argument. Where a fact is contested, each side may urge its own version and the bench will resolve it in judgment.

A. Agreed facts

Fact 1 (Agreed). France and Iran are both parties to the Vienna Convention on Consular Relations of 24 April 1963 and to its Optional Protocol concerning the Compulsory Settlement of Disputes. Both are parties to the International Covenant on Civil and Political Rights. Iran is not a party to the Convention against Torture.

Fact 2 (Agreed). Cécile Kohler is a French national, a teacher of modern literature, and an active member of a French teachers' trade union. Jacques Paris is a French national, her partner, and a retired teacher. Neither holds Iranian nationality or any nationality other than French.

Fact 3 (Agreed). The two entered Iran lawfully in the spring of 2022 on tourist visas. On 7 May 2022, the final day of their trip, both were arrested by Iranian authorities.



Fact 4 (Agreed). Iranian authorities publicly linked the arrests to alleged contacts with Iranian teachers' union activists and to alleged attempts to foment unrest, and the two were subsequently accused of offences against national security, including espionage. Both deny all charges.

Fact 5 (Agreed). Iran did not notify France of the arrests. On 11 May 2022 France contacted the Iranian authorities to request information concerning the disappearance of its two nationals.

Fact 6 (Agreed). Since their arrest the two have been detained principally at Evin prison in Tehran, and for substantial periods in a section of that prison administered by security authorities.

Fact 7 (Agreed). In October 2022 Iranian state television broadcast video recordings of the two appearing to confess to acting for French intelligence.

Fact 8 (Agreed). Between the arrests and 16 May 2025, a period of just over three years, the two received four consular visits from French officials. Requests for further visits were made and were not granted within that period.

Fact 9 (Agreed). Between 2023 and March 2025, at least four other French nationals detained in Iran on security-related charges were released and permitted to leave Iran at various dates.

Fact 10 (Agreed). On 2 April 2025 the French Minister for Europe and Foreign Affairs announced France's intention to bring proceedings before the Court. On 16 May 2025 France filed its application. Criminal proceedings against the two in Iran remained pending and had not concluded at that date.

B. Contested facts

Fact 11 (Contested). France states that the four consular visits were conducted under very restrictive conditions, in the presence of Iranian officials, without confidentiality, and in some instances through an imposed interpreter, and that these conditions defeated the purpose of consular access. Iran states that the visits were conducted in accordance with its laws and regulations, as Article 36(2) of the Vienna Convention permits, and that security conditions attached to visits in an espionage



investigation regulate the right without denying it.

Fact 12 (Contested). France states that the two have been denied counsel of their own choosing, and that lawyers acting for them have been restricted to a list approved by the judiciary, with limited access to the case file. Iran states that both have legal representation, that their lawyers are in contact with the judiciary, and that the conduct of criminal defence is governed by Iranian law applicable to all persons within its jurisdiction.

Fact 13 (Contested). France states that the conditions of detention have included prolonged solitary confinement, sustained interrogation, denial of adequate medical care, and psychological pressure amounting to torture or to cruel, inhuman or degrading treatment, and that the confessions broadcast in October 2022 were extracted by coercion. It relies on the public characterisation of its Foreign Minister that the two are held in appalling conditions amounting to torture. Iran denies mistreatment, states that detention conditions comply with its law, and states that the broadcast statements were made voluntarily.

Fact 14 (Contested). France states that in 2023 Mr Paris was directed to convey, through a telephone call to his daughter, a message communicating Iran's willingness to release the two in exchange for the transfer to Iran of named individuals held abroad, and that this message evidences a policy of detaining foreign nationals as leverage. Iran denies that any organ of the state made or authorised such a communication, denies the existence of any policy of detention as leverage, and states that no demand of the kind alleged has ever been made through any official channel.

Fact 15 (Contested). France states that the charges as framed expose the two to the gravest penalties known to Iranian law, and that the timing and conduct of the proceedings indicate a purpose extraneous to the ordinary administration of criminal justice. Iran states that the proceedings are ordinary criminal process, judicially supervised, arising from evidence of genuine offences, and that their duration reflects the complexity and sensitivity of the case.

III. Jurisdiction, the Real Basis and the



Simulated One

The real basis

France founds jurisdiction on Article 36, paragraph 1, of the Statute read with Article I of the Optional Protocol to the Vienna Convention on Consular Relations, which provides that disputes arising out of the interpretation or application of the Convention lie within the compulsory jurisdiction of the Court. This is the fifth consular access case brought on that Protocol, after the Tehran Hostages case, Breard, LaGrand, and Avena, with Jadhav proceeding on the parallel basis of the same Protocol between India and Pakistan. On this basis the Court could adjudicate the consular claims and treat everything else as context.

The simulated special agreement

For this committee, the parties are deemed to have concluded a special agreement under Article 36, paragraph 1, of the Statute, submitting the following questions. This instrument is the Executive Board's construction and does not exist in the real case.

- (a) whether the Court has jurisdiction over each question below, whether each claim is admissible, and whether France is entitled to exercise diplomatic protection in respect of its nationals notwithstanding the character of the offences alleged against them;
- (b) whether Iran has breached its obligations under Article 36 of the Vienna Convention on Consular Relations in respect of notification, access, communication, and legal representation;
- (c) whether the detention of the two nationals is arbitrary within the meaning of Article 9 of the International Covenant on Civil and Political Rights, and whether the conduct alleged is contrary to the prohibition of hostage taking as reflected in the International Convention against the Taking of Hostages of 1979 and in customary international law;
- (d) whether the treatment of the detainees and the conduct of proceedings against them are consistent with Iran's obligations under Articles 7, 9, 10 and 14 of the Covenant and with the customary prohibition of torture and cruel, inhuman or degrading treatment;
- (e) what remedies, if any, follow from any breach found, including cessation, release, restitution, compensation, satisfaction, and



guarantees of non-repetition.

Consent by special agreement does not end argument about jurisdiction. The scope of the questions can be contested, and admissibility objections remain open, including the objection that the Court is being invited to sit as a chamber of criminal appeal over pending domestic proceedings, a function it has consistently disclaimed.

IV. The Grounds to Be Argued, and How They Divide

The case divides into five grounds, and each ground divides into two parts, Part A and Part B. One counsel argues each part, so two counsel share a ground and argue it one after the other, Part A first, then Part B. Five grounds, two parts each, ten counsel a side. Every member of each team argues exactly one part, no counsel may take more than one, and the Agent and Deputy Agent are among the ten and carry a part each in addition to opening and closing. Teams must distribute the parts equitably, matching stronger and newer advocates across the case rather than stacking one ground, and the distribution must be filed with the memorial.

For each ground this section states the question, the division between the parts, and the strongest case for each side with the authorities both teams must know at paragraph level. Treat what follows as the skeleton you are expected to put flesh on.

Ground One. Jurisdiction, admissibility, and diplomatic protection

The question. Does the Court have jurisdiction over each claim, is each claim admissible, and may France exercise diplomatic protection notwithstanding the espionage allegations?

Division. Part A argues jurisdiction, the two bases, the construction of the special agreement, and the existence and scope of the dispute. Part B argues admissibility and diplomatic protection, espousal, nationality of claims, exhaustion of local remedies, and the objection of interference in domestic jurisdiction.

The case for France



On Part A, consent is complete on two independent bases. The Optional Protocol carries the consular claims on the authority of the entire LaGrand line, and the special agreement carries the remaining questions by its plain terms, construed, as treaty texts are, by the ordinary meaning of their words in context and in light of object and purpose. Behind both bases stands *pacta sunt servanda*, agreements are to be kept, the oldest rule in the book and the reason a special agreement, once concluded, cannot be shrugged off at the door of the Court. A dispute plainly exists on the *Mavrommatis* definition, and the criminal-appeal objection misdescribes the claims, which concern Iran's international obligations, not the correctness of its courts' rulings.

On Part B, diplomatic protection is the oldest instrument in this field, stated in *Mavrommatis* in words every advocate should know, that by taking up the case of one of its subjects a state is in reality asserting its own right, the right to ensure in the person of its subjects respect for the rules of international law. Nationality of claims is continuous and undisputed on Fact 2, and no genuine-link difficulty of the *Nottebohm* kind arises for original nationals. Exhaustion is inapplicable to the direct and interdependent Article 36 claims on the authority of *Avena*, and for the remainder the futility exception applies where the remedies said to be available run through the very process alleged to be defective. As to espionage, *Jadhav* decides the point, the gravity of the accusation heightens rather than displaces the need for protection.

The case for Iran

On Part A, consent is construed without straining, and the special agreement does not license the Court to supervise a pending criminal prosecution. Iran should frame its objections in the Court's own vocabulary, the claims fall outside the agreement *ratione materiae*, by subject matter, insofar as they ask for supervision of a domestic trial, and they are premature *ratione temporis* insofar as they ask the Court to condemn proceedings that have not concluded. Questions (c) and (d) invite exactly that, and they are inadmissible or premature while proceedings continue.

On Part B, this is Iran's strongest intellectual ground and it should be argued at the level of principle. Territorial criminal jurisdiction over



persons arrested within the territory is the baseline of the international legal order, affirmed since *Lotus*, and nothing in the Covenant or the Vienna Convention displaces it. A state cannot convert a pending prosecution into an international dispute by disbelieving the charges. The espoused claims are indirect, the local remedies rule applies as settled customary law and is unmet, and the futility exception demands proof of futility, not suspicion of it. Iran may frame the whole of France's case within the principle of non-intervention in matters within domestic jurisdiction, reflected in Article 2(7) of the Charter and in customary law.

Ground Two. Consular access under Article 36 of the Vienna Convention

The question. Did Iran breach Article 36 in respect of notification without delay, access and communication, and legal representation?

Division. Part A argues notification and information without delay under Article 36(1)(b), on Fact 5. Part B argues access, visits, communication and legal representation under Article 36(1)(a) and (c), and the proviso of Article 36(2), on Facts 8, 11 and 12.

The structure of Article 36

Article 36(1)(a) protects the freedom of consular officers and nationals to communicate with and have access to one another. Article 36(1)(b) requires the receiving state, if the detainee so requests, to inform the consular post without delay of the arrest, to forward communications without delay, and to inform the detainee of his rights without delay. Article 36(1)(c) protects the right of consular officers to visit, to converse and correspond with, and to arrange legal representation for the detained national. Article 36(2) permits these rights to be exercised in conformity with the laws and regulations of the receiving state, subject to the proviso that those laws must enable full effect to be given to the purposes of the rights.

The case for France

On Part A, the jurisprudence is squarely in France's favour. *LaGrand* established that Article 36(1) creates individual rights alongside the rights of the sending state. *Avena* construed "without delay" as a duty upon the arresting authorities to give the required information as soon



as it is realised that the person is a foreign national, or once there are grounds to think so. On Fact 5, Iran never notified at all, and France had to come asking within four days of the arrests. The breach of Article 36(1)(b) is complete on the agreed facts alone.

On Part B, four visits in three years, on France's case conducted without confidentiality and under surveillance, is not the freedom of communication and access that Article 36(1)(a) and (c) guarantee, and conditions that defeat the purpose of the right breach the proviso to Article 36(2) even where formal visits occur. On Fact 12, the restriction of counsel to an approved list engages the right under Article 36(1)(c) to arrange representation. Jadhav closes the principal escape route, because the Court held that Article 36 admits of no exception for persons accused of espionage.

The case for Iran

The record shows access, not denial, and that distinction organises the whole defence. In LaGrand and Jadhav access was refused outright. Here four visits occurred, communications passed, and lawyers act in the proceedings, so the dispute concerns the adequacy and modalities of access, terrain on which the Convention defers to the receiving state. Iran should add the structural point, that consular law is a *lex specialis*, a specialised regime that the Court in the Tehran Hostages case itself described as self-contained, and the standards for judging Iran's conduct are therefore those of the Vienna Convention and nothing broader. Article 36(2) expressly subjects the exercise of the rights to national laws and regulations, and security conditions attached to consular visits during an espionage investigation are a regulation of the right recognised by that paragraph, not its denial. "Without delay" is not "immediately," as LaGrand accepted, and the burden rests on France to prove that the conditions defeated the purpose of the right. Part B counsel should also plead in the alternative, that any notification breach was discrete and early, long since overtaken by actual consular contact, and cannot carry the weight France places on it at the remedial stage.

Ground Three. Arbitrary detention and hostage taking

The question. Is the detention arbitrary within Article 9 of the Covenant, and does the alleged conduct meet the definition of hostage taking?



Division. Part A argues arbitrariness under Article 9, on Facts 3, 6 and 15. Part B argues hostage taking, attribution, and the pattern, on Facts 9 and 14.

The case for France

On Part A, the Human Rights Committee's settled position is that detention may be arbitrary notwithstanding legal authorisation where it is inappropriate, unjust, or lacking in predictability, and detention pursued for purposes extraneous to the criminal process, as leverage against a third state, is the paradigm.

On Part B, Article 1 of the Hostages Convention defines the offence as the seizure or detention of a person, combined with a threat to kill, injure or continue to detain, in order to compel a third party, including a state, to do or abstain from doing any act as an explicit or implicit condition for release. Fact 14, if the bench accepts France's version, is that definition in operation. On attribution, France has two routes. If the message originated from officials, Articles 4 and 7 of the ILC Articles attribute it directly. If it originated lower down, the Tehran Hostages judgment shows how endorsement and perpetuation by the state translate conduct into acts of that state. Facts 9, 14 and 15 together disclose a pattern, and the Court may draw inferences where the direct evidence lies in the exclusive control of the Respondent, as Corfu Channel expressly permits.

The case for Iran

The hostage-taking claim rests on Fact 14, a single hearsay communication relayed through a family member, denied by the state, attributed to no identified organ, and contested on this record. Iran's anchor here is the old maxim *actori incumbit probatio*, the burden of proof lies on the party who asserts, and France asserts everything on this ground. State responsibility begins with attribution, and France cannot attribute a demand no organ of the state has made. The releases in Fact 9 prove the opposite of France's pattern, they show a functioning process of clemency and case-by-case resolution. On arbitrariness, the detention follows arrest on defined charges, judicial supervision, and pending proceedings, which is the ordinary operation of criminal law. The gravity of an allegation demands proof of corresponding certainty,



and the Court has said so in terms.

Ground Four. Treatment in detention and fair trial

The question. Are the conditions of detention and the conduct of proceedings consistent with Articles 7, 9, 10 and 14 of the Covenant and with the customary prohibition of torture?

Division. Part A argues treatment in detention under Articles 7 and 10 and custom, on Facts 6 and 13. Part B argues fair trial and the broadcast confessions under Article 14, on Facts 7 and 12, together with the standard and burden of proof.

The case for France

On Part A, Iran ratified the Covenant in 1975 and remains bound without relevant reservation. Article 7 prohibits torture and cruel, inhuman or degrading treatment absolutely, Article 10 requires humane treatment of all persons deprived of liberty, and the Human Rights Committee has long treated prolonged incommunicado and solitary confinement as conduct that may violate both. The torture prohibition binds Iran in any event as *jus cogens*, a peremptory norm from which no derogation is permitted, owed *erga omnes*, to the international community as a whole, so Iran's absence from the Convention against Torture changes the pleading route, through the Covenant and custom, but not the obligation.

On Part B, the broadcast of confessions, Fact 7, engages Article 14(2) on the presumption of innocence and Article 14(3)(g) on the right not to be compelled to confess guilt, and General Comment 32 places on the state the burden of proving that statements were given freely. On evidence, France meets the thin-record objection with *Corfu Channel*, the conditions inside a security wing of Evin prison are facts within the exclusive control of the Respondent, and the Court may resort to inference and circumstantial evidence. *Diallo* shows the whole architecture working, a state espousing its national's Covenant claims to judgment and compensation.

The case for Iran

The allegations in Fact 13 are France's pleaded case, not established fact,



and the record contains no medical evidence, no independent inspection, and no finding by any body seized of the individuals' situation. The voluntariness of the broadcast statements is precisely the kind of question a trial court determines on evidence, and the Court should not pre-empt pending proceedings by ruling on it first. Corfu Channel permits inference, it does not abolish the burden of proof, and Bosnia fixes that burden high where the allegation is grave. Iran should also press the institutional point, that the Covenant's own machinery exists for individual grievances of this kind, and the Court should be slow to convert inter-state litigation into a substitute for it while domestic and treaty avenues remain open.

Ground Five. Remedies

The question. If breaches are found, what follows?

Division. Part A argues the framework and France's primary case, cessation, restitution and release. Part B argues the consular remedy line, review and reconsideration, satisfaction, and assurances of non-repetition, and answers Part A.

The framework

The law of remedies rests on an instinct older than the Court itself, *ubi jus ibi remedium*, where there is a right there is a remedy, and its modern statement is *Chorzów Factory*, reparation must, as far as possible, wipe out all the consequences of the illegal act and re-establish the situation which would in all probability have existed if that act had not been committed. That standard has a name the parties will trade throughout this ground, *restitutio in integrum*, restoration to the original position. The ILC Articles organise the consequences, cessation and assurances of non-repetition under Article 30, full reparation under Article 31, taking the forms of restitution, compensation and satisfaction under Articles 34 to 37.

The case for France

Where the detention itself is the wrongful act, restitution means liberty, and the controlling analogy is the *Tehran Hostages* judgment, in which the Court ordered the immediate release of the detained persons. France must distinguish the review-and-reconsideration line with care



rather than ignore it. LaGrand and Avena fashioned that remedy because the consular breach there infected a conviction already rendered. Here the breaches alleged are the detention and its conduct, the proceedings are unfinished, and the remedy attaches to the wrongful situation itself, continuing acts requiring cessation under Article 30 rather than review after the fact. France should also seek satisfaction in the form of a declaration, and assurances of non-repetition directed at the alleged policy, which LaGrand shows the Court willing to address where the risk of repetition is real.

The case for Iran

Remedies follow the breach found, and no breach available on this record supports an order of release. If an Article 36 violation is found, the consular jurisprudence is uniform and recent, the remedy is effective review and reconsideration by the courts of the receiving state, chosen precisely out of respect for domestic criminal process, and Jadhav reaffirmed it in 2019 in a capital case while declining to order release, acquittal or annulment. Tehran Hostages is not this case. The persons detained there were diplomatic and consular staff whose inviolability was absolute and whose detention was attached to no legal process at all. Here there are charges, courts, and pending proceedings, and Avena states in terms that the Court does not sit as a court of criminal appeal. If anything is owed, a declaratory judgment is the appropriate satisfaction, as the Court has often held the declaration itself to constitute appropriate satisfaction.

V. Advocacy, How to Argue in This Room

This section is the craft manual for the committee, and we will hold every advocate to it. None of what follows is decoration. It is how the marks are earned, and just as importantly it is how real counsel plead at The Hague, so treat it as training rather than housekeeping.

The shape of a submission

Every argument follows the same four steps. State the proposition. Give the authority for it. Apply it to the numbered facts. State the conclusion and the relief that follows. A model, spoken aloud, sounds like this.



“Members of the Court, France’s submission on this part is that Iran breached Article 36, paragraph 1(b), of the Vienna Convention. The rule is stated in Avena at paragraphs 87 to 88, notification is owed as soon as the authorities realise the person is a foreign national or have grounds to think so. On Fact 3, the two were arrested on tourist visas held by French passport holders, so the grounds existed at the moment of arrest. On Fact 5, Iran never notified France at all, and France had to request information itself four days later. The breach is made out on the agreed facts alone, and its consequences are for Ground Five.”

Notice what that paragraph does. One proposition, one authority with pinpoints, two numbered facts, one conclusion, and a handoff to the ground where the consequences belong. That is the unit of argument in this room, and a twelve-minute speech is five or six of those units in a deliberate order.

Citing case law

- Cite by case name, year, and paragraph, then state the holding in one sentence of your own before applying it. “LaGrand, 2001, paragraph 77, the Court held that Article 36 creates individual rights” is complete. Reading long extracts aloud is not argument and will be stopped.
- Understand what a judgment is worth. Under Article 59 of the Statute a judgment binds only the parties to that case, so you never say “the Court is bound by LaGrand.” You say the Court has consistently held, and departure from its settled jurisprudence requires reasons. PCIJ decisions, Lotus, Mavrommatis, Chorzów, carry the same weight in that jurisprudence, as the present Court treats the two courts’ case law as continuous.
- Confront adverse authority, never ignore it. The advocate for Iran who pretends Jadhav does not exist loses the ground. The advocate who says “Jadhav rejected an espionage exception, and we do not plead one, our case rests on Article 36(2), which Jadhav did not construe” has done the job. Distinguishing means naming the case, naming the difference, and explaining why the difference matters.
- If two authorities pull in different directions, say so and argue which controls and why, by date, by closeness of facts, or by the level of generality of the holding. The bench will always reward candour about



tension in the case law over the pretence that none exists.

- Use Latin the way the Court uses it, as shorthand for doctrine, not as perfume. Jus cogens, *ratione materiae*, *restitutio in integrum*, each of these earns its place because it names a precise legal idea faster than English can. A maxim dropped for its sound, without the doctrine behind it, will draw a question from the bench you do not want.

Using treaty text and other legislation

- Quote the operative words exactly, briefly, and only the words that do the work. “Article 36(2) requires that laws and regulations ‘must enable full effect to be given to the purposes for which the rights... are intended,’ and full effect is the standard Iran fails” is the technique, eight quoted words carrying the whole argument.
- Construe what you quote. The rule of interpretation is Article 31 of the Vienna Convention on the Law of Treaties, ordinary meaning, in context, in light of object and purpose, with recourse to the preparatory work under Article 32 only to confirm or to resolve ambiguity. Say which limb you are relying on. “The ordinary meaning of ‘without delay’ is temporal, but its object, enabling consular assistance while it can still matter, is what fixes how much delay the phrase tolerates” is interpretation done aloud.
- Instruments that are not treaties, the ILC Articles, the General Comments, the Mandela Rules, are cited for what they are, authoritative statements of or glosses on the law, not binding enactments. Say “the ILC Articles, widely accepted as reflecting custom, provide at Article 30” and you have used them correctly.

Quoting and the record

- Quote verbatim or paraphrase honestly, never a blend. If the words are inside quotation marks they must be the exact words of the source, with the pinpoint given.
- Every factual assertion cites a numbered fact. Agreed facts, 1 to 10, cannot be disputed, and an advocate who contradicts one will be corrected from the bench. Contested facts, 11 to 15, are argued, and the tools are the ordinary ones of proof, burden, plausibility, and inference, with Corfu Channel governing when inference from exclusive control is permitted and Bosnia governing how high the standard sits for grave



allegations.

- No new facts, ever. If the record does not contain it, it does not exist, and inviting the bench to assume it is the fastest way to lose credibility in this room.

Answering the bench

- Answer the question asked, immediately and directly, then return to your structure. If the honest answer is a concession, make it and protect the rest of your case, a concession well made buys credibility that carries the next three arguments.
- If you do not know, say so and offer to return to it after the recess with a reference. Inventing an answer under questioning is the single worst thing an advocate can do here.

VI. Provisional Measures, an Optional Opening Round

At the discretion of the Executive Board, the first sitting may open with a request by France for the indication of provisional measures under Article 41 of the Statute. If that round is held, both teams argue it before the merits begin, and the bench rules from the chair at the end of the first session. The test is settled. The Court must find *prima facie* jurisdiction, a plausible link between the rights asserted and the measures sought, and a risk of irreparable prejudice attended by urgency. *Jadhav* supplies the closest precedent, an order indicating that no execution occur pending judgment, made within days in a consular case with grave individual stakes. France would seek measures protecting the health and legal position of the detainees and restraining any irreversible step in the proceedings. Iran would answer that no urgency is shown on a record of pending ordinary process, and that the measures sought would prejudice the merits.

VII. How Committee Will Run

This is a courtroom, and the flow is fixed in advance so that every advocate knows when they speak and what for. There are no witnesses in this simulation. The record consists of the Statement of Facts in



Section II and the authorities in this guide and the resource list, and it is closed. No advocate may introduce facts beyond it. Factual assertions in argument must cite a numbered fact, and legal assertions must cite an authority.

Composition and the distribution of parts

Two teams of ten. France as Applicant, Iran as Respondent. Each team designates an Agent, who opens and closes and owns overall strategy, and a Deputy Agent. All ten members of a team are counsel, and the ten parts of the case, five grounds of two parts each, are distributed one part to each counsel. The Agent and Deputy Agent carry a part each like everyone else. The two counsel sharing a ground argue it sequentially, Part A then Part B, and are expected to prepare together so the ground reads as one case in two movements, not two speeches that happen to be adjacent. The distribution must be equitable, spreading experience across the grounds rather than concentrating it, and each team files its distribution with its memorial. The bench consists of the President and the Vice-President of the Court, whose questions may interrupt any speech at any time, and answering them well is weighted heavily in marking.

The written phase, one memorial of twenty pages per team

Each team submits a single memorial before the first session, of no more than twenty pages, produced jointly by all ten counsel. This is one document per team, not ten short ones stitched together. The working method that produces a good memorial is for each pair to draft the section on its own ground, covering both parts, and for the Agent and Deputy Agent to edit the whole into a single voice, reconcile the positions across grounds, and own the final text. A memorial that contradicts itself between grounds will be read against the team that filed it.

The memorial follows a fixed shape. A statement of the case, no more than two pages, saying what the team asks the Court to decide and why it should win. Submissions ground by ground, in the order of this guide, each addressing both parts with authorities pinpointed. The relief sought, stated precisely. A table of authorities. The memorial is the team's anchor, oral argument may develop it but may not contradict it



without explaining the change to the bench.

The oral phase, the flow of the three days

- Session one. Formal opening of the sitting. If the Board directs, the provisional measures round is heard first, fifteen minutes a side, with an oral ruling from the chair. Opening statements by the Agents follow, France then Iran, up to ten minutes each, framing the whole case. The bench may question during openings.
- Sessions two through six. The five grounds, argued in order. For each ground, counsel for France plead first, Part A then Part B, up to seven minutes a part, followed by counsel for Iran in the same order and on the same clock, with bench questions throughout. The bench may extend or trim time where the argument warrants it.
- Session seven. Rebuttal and surrebuttal. France responds ground by ground, up to twenty minutes in total allocated by the Agent among counsel, then Iran, the same. New arguments are not permitted in rebuttal, only answers to what has been said.
- Session eight. Closing statements by the Agents, Iran then France, up to eight minutes each.
- Session nine. The bench retires, deliberates, and delivers judgment orally, ground by ground, with reasons, including its resolution of each contested fact. The judgment is final for the purposes of the conference.

Courtroom conventions

The conventions below are not theatre. They exist because the whole proceeding rests on *audiatur et altera pars*, let the other side be heard, and everything about how this room runs, the alternating parts, the fixed clocks, the rebuttal round, is that principle made mechanical.

- Advocates address the bench as “Mr President,” “Madam Vice-President,” or “Members of the Court,” and opposing counsel as “my learned friend.” Speeches are made standing, from the record, without placards or notes passed mid-speech.
- Citations are given by case name and paragraph, and facts by number. “LaGrand at paragraph 77, on Fact 5” is a complete submission in this room. “International law says” is not a citation at all.



- When the bench asks a question, the speech stops and the question is answered before argument resumes. “I will come to that” is acceptable exactly once per speech. The bench may also raise a point proprio motu, of its own motion, that neither team has pleaded, and both Agents should be ready to take a position on it by the rebuttal session.

Marking

Marks are carried under five heads. The team memorial, assessed for the section your pair drafted. Oral advocacy on your part. Handling of bench questions. Rebuttal. Overall command of the record and authorities across the three days. The Agents are additionally assessed on openings, closings, and the coherence of the team’s case as a whole. One thing we want understood before the first session, because every year someone learns it the hard way. There is no marking advantage in aggression, and there is a large one in precision. The advocate who concedes a bad point cleanly and wins the next two will finish above the advocate who concedes nothing and wins nothing.

VIII. Timeline of the Record

- Spring 2022. Kohler and Paris enter Iran on tourist visas.
- 7 May 2022. Both are arrested on the final day of their trip. Iranian authorities publicly link the arrests to alleged contacts with teachers’ union activists.
- 11 May 2022. France contacts the Iranian authorities to request information about the disappearance of its nationals. No prior notification of the arrests was given.
- October 2022. Iranian state television broadcasts footage of the two appearing to confess. France denounces the confessions as forced.
- 2022 to 2025. The two are held principally at Evin prison. Four consular visits take place. France repeatedly demands release and unimpeded consular access.
- 2023. On France’s case, a message is conveyed through Mr Paris’s daughter communicating willingness to release the two in exchange for transfers to Iran. Iran denies any such communication was made or authorised. This is Fact 14 and it is contested.



- May 2023 to March 2025. At least four other French nationals detained in Iran on security-related charges are released at various dates. The inferences to be drawn are contested.
- 2 April 2025. The French Foreign Minister announces the intention to bring proceedings before the Court.
- 16 May 2025. France files its application instituting proceedings. The record of this simulation closes.

IX. Resources for Advocates, with Links

Primary materials first, always. Every ICJ judgment below is available in full and free on the Court's website, and advocates are expected to have read the cited paragraphs in the original. Where this guide and a primary source disagree, the primary source wins, and the advocate who finds such a divergence and argues it will be marked up, not down. If any link moves, search the case or instrument name on the hosting site.

The case and the parties

- International Court of Justice, list of all cases, locate Kohler and Paris (France v. Islamic Republic of Iran), 2025.
<https://www.icj-cij.org/list-of-all-cases>
- Ministry for Europe and Foreign Affairs of France, statement of 16 May 2025 on the submission of the application.
<https://www.diplomatie.gouv.fr/en/country-files/iran/news/article/france-submits-an-application-against-iran-to-the-international-court-of-justice>
- Volterra Fietta, France institutes proceedings against Iran before the International Court of Justice, 20 May 2025.
<https://volterrafietta.com/france-institutes-proceedings-against-iran-before-the-international-court-of-justice/>
- Cambridge International Law Journal, The Latest Consular Access Case before the ICJ, 5 June 2025.
<https://cilj.co.uk/2025/06/05/the-latest-consular-access-case-before-the-icj-some-merit-speculation-in-the-france-v-iran-case/>
- JURIST, France sues Iran at ICJ for holding two French nationals hostage, 18 May 2025.
<https://www.jurist.org/news/2025/05/france-sues-iran-at-icj-for->



holding-two-french-nationals-hostage/

Treaties and instruments

- Vienna Convention on Consular Relations, 1963, full text.
https://legal.un.org/ilc/texts/instruments/english/conventions/9_2_1963.pdf
- Optional Protocol to the VCCR concerning the Compulsory Settlement of Disputes, 1963, via the UN Treaty Collection, Chapter III.
https://treaties.un.org/Pages/ViewDetails.aspx?src=TREATY&mtdsg_no=III-8&chapter=3
- International Covenant on Civil and Political Rights, 1966, full text.
<https://www.ohchr.org/en/instruments-mechanisms/instruments/international-covenant-civil-and-political-rights>
- International Convention against the Taking of Hostages, 1979, text and status.
https://treaties.un.org/Pages/ViewDetails.aspx?src=IND&mtdsg_no=XVIII-5&chapter=18
- Vienna Convention on the Law of Treaties, 1969, full text.
https://legal.un.org/ilc/texts/instruments/english/conventions/1_1_1969.pdf
- Statute of the International Court of Justice.
<https://www.icj-cij.org/statute>
- Rules of Court. <https://www.icj-cij.org/rules>
- UN Standard Minimum Rules for the Treatment of Prisoners, the Nelson Mandela Rules, GA resolution 70/175, 2015.
https://www.unodc.org/documents/justice-and-prison-reform/Nelson_Mandela_Rules-E-ebook.pdf

Judgments and orders, all on the ICJ website

- United States Diplomatic and Consular Staff in Tehran (United States v. Iran), Judgment, 1980, ICJ case 64. <https://www.icj-cij.org/case/64>
- Vienna Convention on Consular Relations (Paraguay v. United States), the Breard case, Order of 9 April 1998, ICJ case 99.
<https://www.icj-cij.org/case/99>
- LaGrand (Germany v. United States), Judgment, 2001, ICJ case 104.
<https://www.icj-cij.org/case/104>



- Avena and Other Mexican Nationals (Mexico v. United States), Judgment, 2004, ICJ case 128. <https://www.icj-cij.org/case/128>
- Jadhav (India v. Pakistan), Provisional Measures 2017 and Judgment 2019, ICJ case 168. <https://www.icj-cij.org/case/168>
- Ahmadou Sadio Diallo (Guinea v. DRC), Merits 2010 and Compensation 2012, ICJ case 103. <https://www.icj-cij.org/case/103>
- Interhandel (Switzerland v. United States), Preliminary Objections, 1959, ICJ case 34. <https://www.icj-cij.org/case/34>
- Elettronica Sicula S.p.A. (ELSI) (United States v. Italy), Judgment, 1989, ICJ case 76. <https://www.icj-cij.org/case/76>
- Corfu Channel (United Kingdom v. Albania), Merits, 1949, ICJ case 1. <https://www.icj-cij.org/case/1>
- Nottebohm (Liechtenstein v. Guatemala), Second Phase, 1955, ICJ case 18. <https://www.icj-cij.org/case/18>
- Military and Paramilitary Activities in and against Nicaragua (Nicaragua v. United States), Merits, 1986, ICJ case 70. <https://www.icj-cij.org/case/70>
- Application of the Genocide Convention (Bosnia and Herzegovina v. Serbia and Montenegro), Judgment, 2007, ICJ case 91. <https://www.icj-cij.org/case/91>
- Questions relating to the Obligation to Prosecute or Extradite (Belgium v. Senegal), Judgment, 2012, ICJ case 144. <https://www.icj-cij.org/case/144>
- Application of the ICSFT and CERD (Ukraine v. Russian Federation), Provisional Measures, Order of 19 April 2017, ICJ case 166. <https://www.icj-cij.org/case/166>
- PCIJ decisions, Mavrommatis, Lotus, and Factory at Chorzów, via the Court's PCIJ archive. <https://www.icj-cij.org/pcij>

Doctrine and secondary materials

- ILC Articles on Responsibility of States for Internationally Wrongful Acts, 2001, with commentaries. https://legal.un.org/ilc/texts/instruments/english/draft_articles/9_6_2001.pdf
- ILC Draft Articles on Diplomatic Protection, 2006, with commentaries. https://legal.un.org/ilc/texts/instruments/english/draft_articles/9_8_



2006.pdf

- Human Rights Committee, General Comments, including No. 20 (Article 7), No. 32 (Article 14), and No. 35 (Article 9).
<https://www.ohchr.org/en/treaty-bodies/ccpr/general-comments>
- UN Working Group on Arbitrary Detention, methods of work and category definitions.
<https://www.ohchr.org/en/special-procedures/wg-arbitrary-detention>
- United Nations Treaty Collection, for the status of every instrument cited in this guide. <https://treaties.un.org>
- Lee and Quigley, Consular Law and Practice, 3rd edition, Oxford University Press, on the operation of Article 36.
- Crawford, Brownlie's Principles of Public International Law, current edition, chapters on state responsibility, diplomatic protection, and the settlement of disputes.